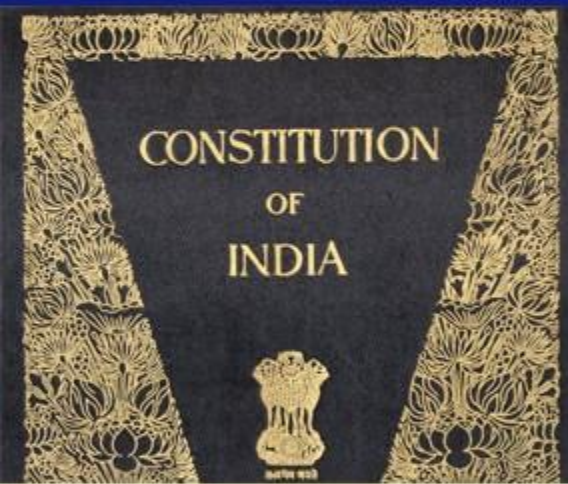


INDIAN POLITY



MODULE - 32

FUNDAMENTAL RIGHTS

▪ **ARTICLE 15, 16, 17 & 18**

FUNDAMENTAL RIGHTS

PROHIBITION OF DISCRIMINATION

ARTICLE 15



- 1 Article 15 provides that the State shall not discriminate against any citizen on grounds only of religion, race, caste, sex or place of birth.
- 2 The two crucial words in this provision are 'discrimination' and 'only'.
- 3 The word 'discrimination' means 'to make an adverse distinction with regard to' or 'to distinguish unfavourably from others'.
- 4 The use of the word 'only' connotes that discrimination on other grounds is not prohibited.

ARTICLE 15

- (1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.*
- (2) No citizen shall, on on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to—*
 - a) Access to shops, public restaurants, hotels and places of public entertainment; or*
 - b) The use of wells, tanks, bathing ghats, road and places of public resort maintained wholly or partly by State funds or dedicated to the use of general public.*

ARTICLE 15

FUNDAMENTAL RIGHTS

PROHIBITION OF DISCRIMINATION



- 5** The second provision of Article 15 says that no citizen shall be subjected to any disability, liability, restriction or condition on grounds only of religion, race, caste, sex, or place of birth with regard to
- Access to shops, public restaurants, hotels and places of public entertainment; or
 - The use of wells, tanks, bathing ghats, road and places of public resort maintained wholly or partly by State funds or dedicated to the use of general public.
- 6** This provision prohibits discrimination both by the State and private individuals, while the former provision prohibits discrimination only by the State.

FUNDAMENTAL RIGHTS

PROHIBITION OF DISCRIMINATION

EXCEPTIONS TO DISCRIMINATION

1 There are three exceptions to this general rule of non-discrimination:

- **Article 15(3)**- The state is permitted to make any special provision for women and children. For example, reservation of seats for women in local bodies or provision of free education for children.
- **Article 15(4)**- The state is permitted to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes and scheduled tribes. For example, reservation of seats or fee concessions in public educational institutions.
- **Article 15(5)**- The state is empowered to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or the scheduled tribes regarding their admission to educational institutions including private educational institutions, whether aided or unaided by the state, except the minority educational institutions.

FUNDAMENTAL RIGHTS

PROHIBITION OF DISCRIMINATION

EXCEPTIONS TO DISCRIMINATION

ARTICLE 15

2 The last provision was added by the **93rd Amendment Act of 2005**.

3 In order to give effect to this provision, the Centre enacted the **Central Educational Institutions (Reservation in Admission) Act, 2006**, providing a quota of 27% for candidates belonging to the Other Backward Classes (OBCs) in all central higher educational institutions including the IITs and IIMs.

4 In April 2008, the Supreme Court upheld the validity of both, the Amendment Act and the OBC Quota Act.

5 But, the Court directed the central Government **to exclude the 'creamy layer' (advanced sections) among the OBCs** while implementing the law.

INDIAN POLITY

FUNDAMENTAL RIGHTS

EQUALITY OF OPPORTUNITY IN PUBLIC EMPLOYMENT

ARTICLE 16



1 Article 16 provides for equality of opportunity for all citizens in matters of employment or appointment to any office under the State.

2 No citizen can be discriminated against or be ineligible for any employment or office under the State on grounds of only religion, race, caste, sex, descent, place of birth or residence.

INDIAN POLITY

FUNDAMENTAL RIGHTS

EQUALITY OF OPPORTUNITY IN PUBLIC EMPLOYMENT

EXCEPTIONS TO ARTICLE 16

ARTICLE 16

There are three exceptions to this general rule of equality of opportunity in public employment.

- 3** a) Parliament can prescribe **residence** as a condition for certain employment or appointment in a state or union territory or local authority or other authority. As the Public Employment (Requirement as to Residence) Act of 1957 expired in 1974, there is no such provision for any state except Andhra Pradesh and Telangana.
- b) The State can provide for **reservation of appointments or posts** in favour of **any backward class** that is not adequately represented in the state services.
- c) A law can provide that the **incumbent of an office related to religious or denominational institution** or a member of its governing body should belong to the particular religion or denomination.

FUNDAMENTAL RIGHTS

ABOLITION OF UNTOUCHABILITY

ARTICLE 17



- 1 Article 17 abolishes 'untouchability' and forbids its practice in any form.
- 2 The enforcement of any disability arising out of untouchability shall be an offence punishable in accordance with law.
- 3 In 1976, the Untouchability (Offences) Act, 1955 has been comprehensively amended and renamed as the **Protection of Civil rights Act, 1955** to enlarge the scope and make penal provisions more stringent.

INDIAN POLITY

FUNDAMENTAL RIGHTS

ABOLITION OF UNTOUCHABILITY

ARTICLE 17

- 4** The act defines civil right as any right accruing to a person by reason of the abolition of untouchability by Article 17 of the Constitution.



- 5** The term 'untouchability' has not been defined either in the Constitution or in the Act.
- 6** However, the Mysore High Court held that the subject matter of Article 17 is not untouchability in its literal or grammatical sense but the 'practice as it had developed historically in the country'.
- 7** It refers to the social disabilities imposed on certain classes of persons by reason of their birth in certain castes.

FUNDAMENTAL RIGHTS

ABOLITION OF UNTOUCHABILITY

ARTICLE 17



9 Under the Protection of Civil Rights Act (1955), the offences committed on the ground of untouchability are punishable either by imprisonment up to six months or by fine up to Rs. 500 or both.

10 A person convicted of the offence of 'untouchability' is disqualified for election of the Parliament or state legislature.

- 11** The act declares the following acts as offences:
- Preventing any person from entering any place of public worship or from worshipping therein;
 - Justifying untouchability on traditional, religious, philosophical or other grounds;
 - Denying access to any shop, hotel or places of public entertainment;
 - Insulting a person belonging to scheduled caste on the ground of untouchability;
 - Refusing to admit persons in hospitals, educational institutions or hostels established for public benefit;
 - Preaching untouchability directly or indirectly; and
 - Refusing to sell goods or render services to any person.
- 12** The Supreme Court held that the right under Article 17 is available against private individuals and it is the constitutional obligation of the State to take necessary action to ensure that this right is not violated.

FUNDAMENTAL RIGHTS

ABOLITION OF TITLES

ARTICLE 18



1 Article 18 abolishes titles and makes four provisions in that regard:

- It prohibits the state from conferring any title (except a military or academic distinction) on any body, whether a citizen or a foreigner.
- It prohibits a citizen of India from accepting any title from any foreign state.
- A foreigner holding any office of profit or trust under the state cannot accept any title from any foreign state without the consent of the president.
- No citizen or foreigner holding any office of profit or trust under the State is to accept any present, emolument or office from or under any foreign State without the consent of the President.

FUNDAMENTAL RIGHTS

ABOLITION OF TITLES

ARTICLE 18



Padma
Vibhushan



Padma Bhushan



Padma Shri

2 From the above, it is clear that the **hereditary titles of nobility** like Maharaja, Raj Bahadur, Rai Bahadur, Rai Saheb, Dewan Bahadur, etc, which were conferred by colonial States are banned by Article 18 as these are against the principle of equal status of all.

3 In 1996, the Supreme Court **upheld the constitutional validity of the National Awards-** Bharat Ratna, Padma Vibhushan, Padma Bhushan and Padma Sri.

4 It ruled that these awards do not amount to 'titles' within the meaning of Article 18 that prohibits only hereditary titles of nobility.

FUNDAMENTAL RIGHTS

ABOLITION OF TITLES

ARTICLE 18



5 Therefore, they are not violative of Article 18 as the theory of equality does not mandate that merit should not be recognised.

6 However, it also ruled that they should not be used as suffixes or prefixes to the names of awardees. Otherwise, they should forfeit the awards.

7 These National Awards were **instituted in 1954**. The Janata Party Government headed by Morarji Desai discontinued them in 1977. But they were again revived in 1980 by the Indira Gandhi Government.

INDIAN POLITY

FUNDAMENTAL RIGHTS

RIGHT TO FREEDOM

PROTECTION OF SIX RIGHTS

ARTICLE 19



1

Article 19 guarantees to all citizens the following six rights.

- i. Right to **Freedom of Speech** and Expression.
- ii. Right to **assemble peaceably** and without arms.
- iii. Right to **form associations or unions** or cooperative societies.
- iv. Right to **move freely** throughout the territory of India.
- v. Right to **reside and settle** in any part of territory of India.
- vi. Right to **practice any profession** or to carry on any occupation, trade or business.

INDIAN POLITY

FUNDAMENTAL RIGHTS

RIGHT TO FREEDOM

PROTECTION OF SIX RIGHTS

ARTICLE 19



- 3 These six rights are protected against only State action and not private individuals.
- 4 Moreover, these rights are only available to the citizens and to shareholders of a company but not to foreigners or legal persons like companies or corporations etc.
- 5 The State can impose “reasonable” restrictions on the enjoyment of these six rights only on the grounds mentioned in the Article 19 itself and not on any other grounds.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

K. Srikanth

D. Sunil Kumar

L. V. Krishna

Y. Deepthi

Amrita Naidu

M. Binukrishna

G. Ravi Babu

D. Joji

K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2

0 9 8 4 9 9 4 2 2 9 9